

Multiple Choice (10 marks)

1. Which of the following best describes Dworkin's distinction between principles and policies?
 - (a) Principles are legislative, policies are precedents.
 - (b) Principles describe rights, policies describe duties.
 - (c) Principles are democratic, policies are autocratic.
 - (d) Principles describe rights, policies describe goals.
2. What is 'unilateral acts'?
 - (a) They are acts that States perform as practice in the context of custom
 - (b) They are acts creating unilateral legal obligations to the acting State
 - (c) Unilateral acts are simply political acts of State devoid of any legal effect
 - (d) Unilateral acts are those that State perform in order to be bound by a treaty
3. Functions of the law include all but which of the following?
 - (a) maximizing individual freedom
 - (b) providing a basis for compromise
 - (c) keeping the peace
 - (d) promoting the principles of the free enterprise system
4. Is piracy under international (jure gentium) law subject to universal jurisdiction?
 - (a) Piracy jure gentium is subject to flag State jurisdiction
 - (b) Piracy jure gentium is subject to universal jurisdiction
 - (c) Piracy jure gentium is subject to port State jurisdiction
 - (d) Piracy jure gentium is subject to nationality-based jurisdiction
5. Which are the formal sources of international law?
 - (a) Custom, treaties and judicial decisions
 - (b) Custom, general principles of law and theory
 - (c) Treaties, custom and general principles of law
 - (d) Treaties, custom and General Assembly Resolutions

True / False (10 marks)

Answer True or False

6. True or False: The Sociological School of jurisprudence asserts that law serves to achieve and advance specific social goals.
7. True or False: The prohibition of torture was the first rule of jus cogens explicitly recognized by the International Court of Justice.
8. True or False: There is no relationship between law and morality, as they operate independently of each other in society.
9. True or False: Kelsen's pure theory of law emphasizes the separation of law from religion, ethics, sociology, and history.
10. True or False: The Analytical School of jurisprudence asserts that law is purely a system of logical rules independent of social influences.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the role of consent as a circumstance that can preclude the wrongfulness of state conduct in constitutional law, highlighting the conditions for valid consent.
12. Discuss the Marxist critique of individual rights within the context of constitutional law, focusing on their relationship to capitalism and their role in a socialist society.

End of Paper